

VCL330600 John Deere Financial vs. Toor, Santokh S

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-07-28

Motion: Motion to Serve Defendant Santokh S. Toor Electronically

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: cf6bf932e23ace8295d03c2678ae0798e358a3f38325faaee39d79839e95a604

Re: John Deere Financial vs. Toor, Santokh S

Case No.: VCL330600

Date: July 28, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Motion to Serve Defendant Santokh S. Toor Electronically

Tentative Ruling: To deny the motion without prejudice

Facts

In this matter, Plaintiff sues Defendant Santokh S. Toor for breach of contract and common counts based on a credit application entered into on December 21, 2020 and containing an email address. Plaintiff alleges damages in the amount of \$26,266.77. (Declaration of Yacoub ¶13.)

The credit application lists an email address of "bt5323@gmail.com."

Plaintiff moves to serve Defendant via electronic means via this motion filed June 10, 2026.

In support, Plaintiff's counsel states:

"On February 9, 2026 through March 1, 2026, our Process Server attempted to serve the Summons and Complaint on the Defendant at her last known residence at 27725 ROAD 92 VISALIA, CA 93277 ("Road 92 address"), however, the Process Server was unsuccessful. The server noted that the property is gated and there was no outside access." (Declaration of Yacoub ¶14 – Ex B. - Process Server Declaration.)

Exhibit B indicates 5 service attempts.

Plaintiff counsel, thereafter, use of two Skip tracing database systems, TLO and IdiCore, which listed the 27725 ROAD 92 address as Defendant's most current address. (Declaration of Yacoub ¶5.)

On March 6, 2026, Plaintiff requested that the Post Office verify that Defendant receives mail at the Road 92 address and the Post Office confirmed Defendant does have mail delivered at the Road 92 address. (Declaration of Yacoub ¶6.)

Between April 4, 2026 and April 26, 2026, Plaintiff, via the process server, again attempted service at the Road 92 address, again noting no access the property due to the gate and attempts to contact the residents via a call box that went unanswered. (Declaration of Yacoub 7 – Ex. D - Process Server Declaration.)

On May 8, 2026, Plaintiff mailed the Summons and Complaint, with a Proof of Service of Summons and two copies of a Notice and Acknowledgment of Receipt with a prepaid return envelope, to the Road 92 address to accept service of the documents by signing one copy of the Notice and Acknowledgment and returning it to Plaintiff's Counsel. (Declaration of Yacoub ¶8.) The response was due May 28, 2026, no response has been received and the Notice and Acknowledgment of Receipt was returned to Plaintiff's counsel's office as "Return to Sender." (Declaration of Yacoub ¶8.)

On May 19, 2026, Plaintiff requested the Tulare County Sheriff's Office attempt to serve Defendant stating that: "Our office is still currently awaiting the completion of those attempts. Our office followed up with the Sheriff's Department on June 10, 2026; we were made aware that to date, the Sheriff is still actively attempting and that the Defendant has not yet been served." (Declaration of Yacoub ¶11.)

Plaintiff's counsel has also emailed the documents to Defendant at a "confirmed email address" on June 10, 2026, but has not received a response as of the date of the declaration, June 10, 2026. (Declaration of Yacoub ¶12.)

On June 17, 2026, a proof of unsuccessful service by the Sheriff's office was filed, indicating no contact was made due to a locked gate.

No opposition appears filed.

Authority and Analysis

In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439.) "In order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures." (Zirbes v. Stratton (1986) 187 Cal.App.3d 1407, 1417.)

For service within the state, "[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served." (Code Civ. Proc. § 415.10.)

Alternatively, if the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, a plaintiff may effectuate substitute service "by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address . . . , in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address . . . , at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b)(1).) For purposes of such substitute service, reasonable diligence

requires attempting personal delivery in good faith on at least three occasions on three different days at three different times. (Code Civ. Proc., 415.20, subd. (b)(2).)

Further, a summons may also be served within the state by mailing the summons and complaint with a notice and acknowledgment of receipt and a return envelope, postage prepaid, addressed to the sender. (Code Civ. Proc., § 415.30, subd. (a).)

Additionally, "[a] summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article[.]" (Code Civ. Proc., § 415.50, subd. (a).) However, "[i]f a defendant's address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort." (Watts v. Crawford (1995) 10 Cal.4th 743, 749, fn. 5.)

Finally, "if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court." (Code Civ. Proc., § 413.30, subd. (a)(1).) "A plaintiff seeking to establish reasonable diligence under this section shall set forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." Code Civ. Proc., § 413.30, subd. (a)(2).)

The Court finds sufficient "reasonable diligence" by "set[ting] forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." (Code Civ. Proc., § 413.30, subd. (a)(2).)

However, the Court does not find a sufficient showing that the email address listed on the credit application in 2020 remains a viable or confirmed email address reasonably calculated to give actual notice. On this issue, the declaration states "Our office also emailed the Summons and Complaint, with a Proof of Service of Summons and two copies of a Notice and Acknowledgment of Receipt to the Defendant's confirmed email address on June 10, 2026" and "Defendant's verified email address BT5323@GMAIL.COM." The declaration, however, is conclusory as to "Defendant's known email address has been actively used for communication." The Court notes no indication of a recent response from Defendant from this email address nor indication that the background searches have revealed any additional email addresses. The Court usually sees motions or applications for publication and posting when defendants cannot be served due to a locked gate, and has found this would be more reasonably calculated to give actual notice.

As such, the Court denies the motion without prejudice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.